

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA**

PRC APPEAL No. 48/2025

M/S H.K. Niazi Government Contractor
Through its Attorney Imran Ullah S/o Hameed Ullah

... Appellant

Versus

1. Government of Balochistan through Secretary, Communication & Works Department, Civil Secretariat, Zarghoon Road, Quetta.
2. Executive Engineer (Roads), CWPP&H Department, Zhob.
3. Chairman Complaint Redressal Committee (CRC), Chief Engineer (Roads) North, CWPP&H Department, Quetta.

... Respondents

QUORUM OF THE COMMITTEE

1. Habib-ur-Rehman Jamot.....Chairman, PRC
2. Mubashir Ali Khan (FCIPS).....Member, PRC
3. Engr. Junaaid Shah.....Member, PRC
4. Engr. Muhammad Ayub Nasir.....Retd. Chief Engineer / Technical Member
5. Syed Muheebullah.....Private Member, PRC

For the Appellant:

Imran Ullah, Attorney — Present in person

For Respondent No. 2:

Mr. Abdul Salam, Executive Engineer (Roads), CWPP&H Department, Zhob

BRIEF FACTS OF THE CASE

1. The Executive Engineer (Roads) of the Communications, Works, Planning & Housing (CWPP&H) Department, Zhob, published the Tender on 28 September 2025 for the procurement of work titled "Construction of 02 No. Multi-Cell Culverts at Flood River near Janazagah, Killi Appozai, District Zhob" under TSE No. 252609880443, with an Approved Estimated Cost of PKR 25.00 million. The procurement was carried out under the Single Stage Two Envelope (SSTE) bidding procedure on a least-cost selection basis, through the BPPRA E-Procurement System. (ePPS)
2. The Appellant, participated in the bidding process by submitting its proposal within the stipulated deadline.
3. Publication of the Technical Evaluation Report dated 25 November 2025, revealed that the Appellant was declared, non-responsive. The stated grounds for disqualification were its failure to submit: (a) a valid Turnover Certificate and (b) a mandatory Blacklisting Declaration, as required by the Procuring Agency in the bidding documents.
4. Aggrieved by the declaration of non-responsiveness, the Appellant filed a complaint with the Complaint Redressal Committee (CRC) of the Procuring Agency on 01 December 2025, in accordance with Rule 56 of the BPP Rules.

5. The CRC, however, failed to announce any decision on the complaint within the statutory period of eighteen (18) days stipulated under Rule 56. Consequently, the Appellant, being entitled to appeal upon the CRC's failure to decide, invoked the jurisdiction of this Procurement Review Committee by filing the present appeal, as mandated by Rule 56-A(1) of the BPPR.

6. Through the instant Appeal, the Appellant has challenged its disqualification and seeks the following reliefs from this Committee:

(a) The setting aside of the Technical Evaluation Report and a declaration that its bid is substantially responsive.

(b) A declaration that the procurement process under TSE No. 252609880443 is vitiated and constitutes a mis-procurement.

7. The Official Respondents filed their Reply, contesting the Appeal. Their defense, however, reveals a fundamental and material inconsistency.

8. They first sought to justify the disqualification on two new grounds, not cited in the published Technical Evaluation Report as grounds of disqualification of the Appellant's bid, namely:

(a) failure to provide evidence of two similar completed works of specified value.

(b) lack of relevant PEC codes on the Appellant's license.

9. The Respondent then admitted that the actual grounds stated in the evaluation report, (non-submission of the Turnover Certificate and Blacklisting Declaration), were themselves erroneous. They attributed these errors to "clerical mistakes" and an alleged "failure of the Government's e-procurement system" to completely load data due to their poor internet connectivity.

10. In essence, the Respondents concede that the stated grounds for disqualifying the Appellant in the published report were factually incorrect. They now seek to retrospectively substitute new justifications for the disqualification. They have prayed for the dismissal of the appeal.

FINDINGS OF THE COMMITTEE

1. The Committee has heard the arguments and has examined the available record, including the bidding documents, the Technical Evaluation Report and the correspondence.

2. On the preliminary issue of jurisdiction, the Committee notes the Appellant's explanation for filing the CRC complaint via courier. The record confirms that the CRC failed to issue any decision within the 18-day period mandated under Rule 56. The Appellant's subsequent appeal to this Committee was therefore timely and properly invoked its jurisdiction. The Committee rejects any contention to the contrary.

3. On the merits, the Procuring Agency's own admissions are dispositive. When questioned, Respondent No. 2 conceded to multiple serious procedural lapses, including blank entries at serial numbers 7 to 10 in the bidder eligibility evaluation, the non-uploading of the Financial Evaluation Report and the lack of signatures of the members of Procurement Committee on the procurement documents. These were again attributed to 'clerical and procedural mistakes' and poor internet connectivity.

4. The Committee finds these explanations wholly insufficient to justify patently illegal procedural failures. A Procuring Agency is obligated to ensure completeness and accuracy of its evaluation records before publishing any result. Internet connectivity is a foreseeable operational challenge for which remedies exist and it cannot excuse non-compliance with mandatory transparency requirements under the BPP Rules.

5. Most decisively, the Respondents admitted in their written Reply (and confirmed during proceedings), that the stated grounds for the Appellant's disqualification (non-submission of Turnover Certificate and Blacklisting Declaration) were erroneous. This is a fatal admission. The law is clear that a bidder can only be disqualified on the grounds communicated in the evaluation report in accordance with the criteria stated in the bidding documents. A Procuring Agency cannot retrospectively invent new justifications during appellate proceedings to validate an initially flawed decision.

6. The attempt to now disqualify the Appellant on different grounds (experience certificates, PEC codes) is legally impermissible and violates the fundamental principles of fairness, transparency and good faith enshrined in the BPP Rules.

7. In light of the foregoing, the Committee finds that the Appellant's disqualification was arbitrary, based on incorrect facts, and procedurally vitiated. The procurement process, marred by admitted gross irregularities and an attempt to change the grounds of decision *ex post facto*, lacks the basic integrity required by law.

DECISION

The object of procurement law is to ensure a fair, merit-based competition. In view of the findings recorded above and given the Procuring Agency's admissions of material procedural violations and erroneous disqualification, this Committee is obligated to hold that the technical evaluation of the instant Tender suffers from fundamental legal flaws.

Consequently, the Appeal is ALLOWED. The Technical Evaluation Report dated 25.11.2025 is SET ASIDE. The matter is REMANDED to the Procuring Agency with the following strict directions:

i. The Procuring Agency shall, within fifteen (15) days of this order, re-evaluate the Appellant's technical bid only on the valid criteria prescribed in the bidding document. If the Appellant's bid is found responsive, it shall subsequently be included in the financial opening and evaluation.

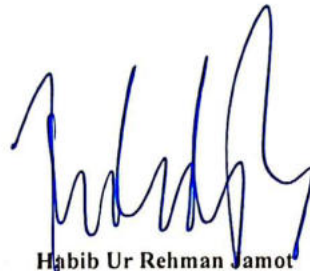
ii. The Procuring Agency shall upload the revised, compliant Evaluation Report on the ePPS and proceed to award the contract to the lowest evaluated bidder in strict accordance with Rule 43 read with Rule 48 of the BPPR, 2014.

iii. Failure to comply with the specific directives and timelines in this order will be viewed as contempt of the Committee's authority and shall result in declaration of mis-procurement.

The Registrar of this Committee is directed to communicate certified copies of this order to the Appellant, the Official Respondents, and the Private Respondent for immediate compliance.

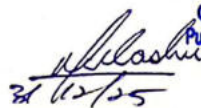
Ordered accordingly.

Announced this 31st day of December 2025 under the seal and Authority of the Chairman, Procurement Review Committee, B-PPRA.



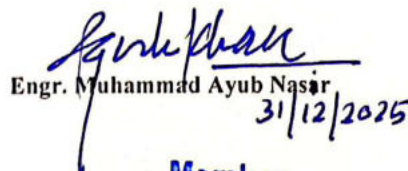
Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)



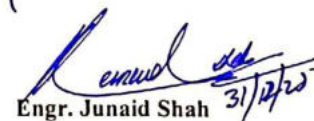
Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



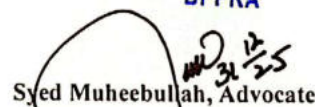
Engr. Muhammad Ayub Nasir

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA



Syed Muheebullah, Advocate

Member
Procurement Review Committee
BPPRA